

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant
Hemant Kathuria

Case Number: 25-01023

vs.

Respondent
A.G.P. / Alliance Global Partners

Hearing Site: New York, New York

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Hemant Kathuria (“Claimant”): Gregg J. Breitbart, Esq., and Zachary Hayes-Macaluso, Esq., Kaufman Dolowich LLP, Fort Lauderdale, Florida.

For Respondent A.G.P. / Alliance Global Partners (“Respondent”): John Venezia, CCO, A.G.P. / Alliance Global Partners, Westport, Connecticut.

CASE INFORMATION

Statement of Claim filed on or about: May 19, 2025.

Claimant signed the Submission Agreement: May 19, 2025.

Statement of Answer filed by Respondent on or about: July 22, 2025.

Respondent did not sign the Submission Agreement.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent did not object to Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 5380092) requested expungement of all references to Occurrence Number 2352206 from the CRD registration records.

In the Statement of Answer, Respondent requested that the FINRA processing and forum fees be assessed against Claimant in accordance with FINRA rules.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

Respondent did not file a properly executed Submission Agreement but is required to submit to arbitration pursuant to the Code of Arbitration Procedure ("Code") and, having answered the claim, is bound by the determination of the Panel on all issues submitted.

On June 6, 2025, Claimant advised that the customers in Occurrence Number 2352206 ("Customers") were served with a copy of the Statement of Claim within 10 days of filing the Statement of Claim and provided proof of service.

On June 16, 2025, the Customers submitted a written statement and opposed the expungement request.

On June 19, 2025, the Customers registered for the DR Portal, providing them with access to all documents filed in the case.

On July 29, 2025, Claimant advised that the Customers were served with a copy of the Statement of Answer although not within 10 days of filing the Statement of Answer and provided proof of service.

The Panel conducted a recorded hearing by videoconference on October 30, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent did not appear at the expungement hearing and as stated in the Statement of Answer, did not oppose the request for expungement.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel reviewed the settlement documentation related to Occurrence Number 2352206, considered the amount of payment made to any party to the settlement, and considered other relevant terms and conditions of the settlement. The Panel noted that the settlement was not

conditioned on any party to the settlement not opposing the expungement request and that Claimant did not contribute to the settlement amount.

The Panel relied upon the following documentary or other evidence: the sworn testimony of Claimant; arbitrators' exhibits including the claim statement and a letter of opposition from the Customers, and the exhibits introduced at the hearing that included account information, signed customer acknowledgements and proof of risk and fee disclosures made in relevant account documentation and offering material.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2352206 from registration records maintained by the CRD for Claimant Hemant Kathuria (CRD Number 5380092) with the understanding that, pursuant to Rule 2080, Claimant Hemant Kathuria must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and the claim, allegation, or information is false.

The Panel has made the above findings based on the following reasons:

Claimant provided uncontroverted sworn testimony, supported by documentary evidence that showed the disclosure of risks and fees was made, and therefore the information reported as Occurrence 2352206 was clearly erroneous and the allegations false.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm that employed the associated person at the time of the event giving rise to the dispute. Accordingly, as a party Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrators, including a pre-hearing conference with the Arbitrators, which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: July 24, 2025	1 session
One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: October 30, 2025	1 session

Total Hearing Session Fees	= \$ 3,450.00
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The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Ronald Harris Kisner	-	Public Arbitrator, Presiding Chairperson
Kirtley M. Thiesmeyer	-	Public Arbitrator
Mary E. Bassett	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm, pursuant to Article 7507 of the Civil Practice Law and Rules, that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Ronald Harris Kisner

Ronald Harris Kisner
Public Arbitrator, Presiding Chairperson

11/03/2025

Signature Date

Kirtley M. Thiesmeyer

Kirtley M. Thiesmeyer
Public Arbitrator

11/03/2025

Signature Date

Mary E. Bassett

Mary E. Bassett
Public Arbitrator

11/04/2025

Signature Date

Awards are rendered by independent arbitrators who issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

November 04, 2025

Date of Service (For FINRA Dispute Resolution Services use only)